

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUPP027634: JANE DOE, A MINOR, BY AND THROUGH HER GUARDIAN AD
LITEM, E.C. vs NICHOLAS BEINER, et al.**

08/04/2026 in Department 43

**Motion for Protective Order Regarding Defendant's Depositions of Plaintiff and Plaintiff's
Mother**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Motion for Protective Order re: Defendant's Depositions of JANE DOE and JANE DOE's Mother (J.C.)

Tentative Ruling: Plaintiff's motion for protective order concerning the deposition of JANE DOE is GRANTED in part. To minimize the potential impact on Jane Doe, the court finds good cause to order her deposition to take place by remote videoconference. (Code Civ. Proc., §2025.420.) Defendant Nicholas Beiner's remote attendance, alone, would not violate the criminal protective order. (Ex 2 to Motion). His participation in the deposition is limited by this order to watching and listening. He is not permitted to appear on screen or speak. He may communicate with his counsel by text, email or telephone separate from the videoconference platform, or he may be present in the room with his counsel but may not appear on screen or speak in the videoconference. Any effort by Defendant Nicholas Beiner to communicate or otherwise "contact" JANE DOE during her deposition, however, would violate the criminal protective order and potentially provide a basis to terminate the deposition.

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Plaintiff's motion for protective order concerning the deposition of J.C. is DENIED. Defendants may set an in-person deposition and Defendant may be present. (Code Civ. Proc., §2025.250 & 2025.310.) The record shows that Defendant Brian Beiner was present at the deposition of E.C., but Plaintiffs do not offer evidence of any inappropriate conduct by Mr. Beiner during the deposition. (The Court notes that defense counsel, Ronald Miyamoto, states that Mr. Beiner will not attend the depositions of these witnesses in-person; he will attend remotely.)

Plaintiff's motion for protective order concerning the questions asked of E.C. as they may relate to the depositions of JANE DOE and J.C. is DENIED. The Court will not issue a prophylactic order prohibiting broad categories of inquiry as requested. Counsel's remedy is to object at the deposition. If, in counsel's judgment an instruction not to answer the question is appropriate, counsel may so instruct the witness and place the specific question at issue.

Moving party is ordered to serve notice of the Court's ruling.